

Vijay Kumar Sarin v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 4 September 2009 · Writ-C No. 46580 of 2009 · Writ-C No. 46580 of 2009 · **Writ disposed of; liberty to apply under Supply Code 2005.**

HEADNOTE

Mandamus for reconnection or a new electricity connection will not issue where the occupier has not applied to the licensee in the manner required by the U.P. Electricity Supply Code, 2005. An application to the City Magistrate is not a substitute. If a proper application is made to the licensee, it is to be considered expeditiously.

FACTUAL SUMMARY

The petitioner, a tenant of House No. C-295-A, Sector 19, Noida, Gautam Buddha Nagar, had electricity at the premises which was disconnected on 11 July 2009. Claiming to have applied for a fresh connection on 20 July 2009 to the City Magistrate, Gautam Buddha Nagar, he sought a mandamus directing restoration of supply by reconnection or a new connection under the U.P. Electricity Supply Code, 2005, at the earliest.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.9

application for reconnection or fresh connection

HOLDING

A writ of mandamus directing reconnection or a new electricity connection will not be entertained where the occupier has not made an application to the licensee in accordance with the U.P. Electricity Supply Code, 2005. If such an application is made, the licensee is to consider it expeditiously. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT TO RECONNECTION OR A FRESH CONNECTION ON THE MERITS, INCLUDING THE VALIDITY OF THE 11.7.2009 DISCONNECTION

Left to be considered if a proper Supply Code application is made to the licensee ¶ 5